

The Press Council (Procedure For Conduct Of Meetings And Business) Regulations, 1979

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UNION OF INDIA

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The Press Council (Procedure For Conduct Of Meetings And Business) Regulations, 1979

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The Press Council (Procedure For Conduct Of Meetings And Business) Regulations, 1979

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19.

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In exercise of the powers conferred by clause (a) of section 26 of the Press Council Act, 1978 (37 of 1978

), the Press Council of India hereby makes the following Regulations, namely:-

1.

Short title and commencement

-(1) These Regulations may be called the Press Council (Procedure for Conduct of Meetings and Business) Regulations, 1979.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.-In these regulations, unless the context otherwise requires,-

(a)

"Secretary" means the Secretary of the Council appointed under sub-section (1) of section 11 of the Act;

(b)

"year" means the calendar year.

3.

Meetings of the Council

-(1) There shall be not less than four ordinary meetings of the Council in any one year held on such dates and at such places as the Chairman may fix.

(2)

The interval between any two ordinary meetings shall not normally be longer than four months.

4.

Quorum at meetings

.-The quorum for meetings of the Council shall be eleven:

[Provided that where there is no quorum, the meetings may be adjourned for an hours to allow time for assembly, so, however, that no quorum shall be necessary in respect of the meeting adjourned for lack of quorum.]

[Substituted by Notification. No. F. No. 17/9/98-99-PCI, dated 10.11.1998 (w.e.f. 16.12.1998).]

5.

Power to call meetings and notice of meetings

-(1) The Chairman may, at any time, call a meeting of the Council after giving notice as required in sub-regulation (2).

(2)

Notice of a meeting signed by the Secretary or, in his absence, by any other person authorised in this behalf by the Chairman shall ordinarily be issued to every member at least twenty-one days before the meeting.

(3)

Notice of the meeting of the Council shall specify the time and place of the meeting.

(4)

The notice shall generally be issued under certificate of posting and the said twenty-one days shall be counted from the date of posting:

Provided that in case of urgency and without the issue of such a notice, a special meeting may be summoned at any time by the Chairman who shall inform the members in advance of the matters for consideration and the reasons for the summoning of the meeting.

(5)

No proceeding shall be invalidated merely on the ground that the requirement as to notice is not strictly complied with.

6.

Power to raise matters at meetings

.-A member shall be entitled to bring before the Council any matter only after having given ten clear days' notice to that effect to the Secretary and such matter shall be put on the agenda of a meeting of the Council, provided that the Chairman may in his discretion allow such matter to be raised at any meeting even without such notice.

7.

Calling of extraordinary meeting on requisition

-(1) The Chairman shall, on requisition made in that behalf by not less than eleven members, call an extraordinary meeting of the Council within fifteen days of the receipt of the requisition.

(2)

The requisition shall set out the business for the consideration of which the meeting it to be called and shall be signed by

the members making the requisition.

(3)

If the Chairman does not, within fifteen days from the date of receipt of a valid requisition, call a meeting of the Council for the consideration of the business specified in the requisition, the meeting may be called by the Members making the requisition themselves, following, as nearly as may be the procedure set out hereinbefore in the regulation:

Provided that on such meeting shall be held before the expiration of fifteen days from the date of the original requisition.

8.

Power of the Chairman to take decisions in urgent matters

.- (1) The Chairman may in his discretion, if urgent action by the Council becomes necessary, take decision and permit the business of the Council to be transacted by an order recorded in writing.

(2)

The papers together with the decision taken by Chairman shall be placed before the next meeting of the Council for confirmation.

9.

Power to adjourn meetings

.- The Council may adjourn its sittings from day to day or to any particular day without prior notice.

10.

Decision by majority

.- The decision on any matter shall be by majority and in the case equality of votes, the Chairman of the meeting shall have and exercise a casting vote.

11.

Power to call to the meeting persons other than members

.- The Chairman may require may employee of the Council or invited any other person or persons to attend and participate in the discussions in any meeting of the Council but such employees or person or persons shall not be entitled to vote.

12.

Agenda

.- The agenda for meetings of the Council shall be prepared by the Secretary or in his absence by a person authorised in this behalf by the Chairman.

13.

Minutes of the meeting

.- (1) The minutes of every meeting shall be recorded by the Secretary or in his absence by a person authorised in this behalf by the Chairman.

(2)

Unless otherwise desired by the Chairman, it shall not be necessary to keep verbatim record of the discussion at any meeting.

14.

Minutes of previous meeting

.- The minutes of the previous meeting shall be placed before the next meeting of the Council and the same shall be confirmed after consideration of the objections, if any.

15.

Chairman to preside over the meetings

.- The Chairman shall preside over the meetings of the Council and in his absence the members shall elect one from amongst themselves to preside at the meetings.

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